

STATE OF NEW YORK

10398--A

IN SENATE

May 15, 2026

Introduced by Sen. MARTINEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, in relation to exempting disabled veterans from certain fees relating to physical modification of a residence to accommodate a disability

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "disabled
2 veteran home modification act".

3 § 2. The general municipal law is amended by adding a new section 95-b
4 to read as follows:

5 § 95-b. Fee exemptions for disabled veterans. 1. For the purposes of
6 this section:

7 (a) "Veteran" shall have the same meaning as set forth in section one
8 of the veterans' services law and shall also include a person who served
9 in the active military, naval, air, or space service, as defined in
10 section 101 of title 38 of the United States code and (i) has a qualify-
11 ing condition, as defined in section one of the veterans' services law,
12 and has received a discharge other than bad conduct or dishonorable from
13 such service, or (ii) is a discharged LGBT veteran, as defined in
14 section one of the veterans' services law, and has received a discharge
15 other than bad conduct or dishonorable from such service.

16 (b) "Service-connected" means with respect to disability, a determi-
17 nation by the United States Department of Veterans Affairs or the United
18 States Department of Defense, that such disability was incurred or
19 aggravated in line of duty in the active military, naval, air, or space
20 service of the United States.

21 2. (a) The governing body of a city, town or village may adopt a local
22 law, rule or ordinance to waive or reduce any building department fees,
23 including permit fees, plan review or plan examination fees, inspection
24 fees, reinspection fees, or other fees required in order to make
25 improvements or alterations to the primary residence of a veteran with a

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 service-connected disability if the improvements are required to accom-
2 modate a service-connected disability of such veteran. Nothing in this
3 section relieves the obligation of any person to submit to the appropri-
4 ate city, town or village any applications, forms, or other paperwork
5 required to obtain a building permit. In order to receive a fee
6 reduction or waiver, a veteran must provide proof of veteran status,
7 documentation required by the governing body pursuant to paragraph (b)
8 of this subdivision, and attest to the fact that the improvements to the
9 residence are required to accommodate the veteran's disability.

10 (b) The governing body of a city, town or village shall specify by
11 local law, rule or ordinance, the documentation required to qualify for
12 a reduction of or waiver from fees under this section, which may
13 include, but is not limited to, a rating decision letter from the United
14 States Department of Veterans Affairs or similar documentation from the
15 United States Department of Defense, and any other information that such
16 city, town or village may require.

17 § 3. This act shall take effect on the first of December next succeed-
18 ing the date on which it shall have become a law; provided, however,
19 that no fees paid to a city, town or village prior to such effective
20 date shall be required to be refunded.